

KEEP FOR YOUR RECORDS / DO NOT FILE

Your record-clearing packet

A clear guide to what is included, what you need to do next, and what to keep for your records.

PREPARED FOR

Not established for this route - ask the clerk or filing office.

PREPARED ON

Not established for this route - ask the clerk or filing office.

JURISDICTION

MS

COURT / AGENCY

Not established for this route - ask the clerk or filing office.

CASE / MATTER

Not established for this route - ask the clerk or filing office.

REMEDY

Not established for this route - ask the clerk or filing office.

WHAT IS INSIDE

- | | | |
|----|------------------------------|---|
| 01 | Next steps | Where to go, what to do, and what happens after filing. |
| 02 | Filing checklist | A final quality-control list before, during, and after filing. |
| 03 | Fees & costs | Known court or agency fees, payment details, and fee-waiver information. |
| 04 | Court-ready documents | Your forms, pleadings, motions, orders, and attachments begin after this guide. |

IMPORTANT

These supplemental pages are for you. Do not file or submit them to the clerk or court. File only the court-facing documents identified in your packet instructions.

Discretionary Expungement of Additional Justice Court or Municipal Court Misdemeanors

This packet is prepared for asking the Mississippi justice court or municipal court that convicted you to expunge any or all of its own misdemeanor convictions.

RELIEF IS DISCRETIONARY. Both sections say the court MAY expunge. Meeting all three elements does not entitle you to the order.

The parallel provisions give the justice court or municipal court discretionary power to expunge any or all misdemeanor convictions in that same court after an open-court showing of rehabilitation, good conduct for two years since the last conviction in any court, and the best interest of society. The order does not reach confidential law-enforcement records and has no effect on the Title 63 driving record.

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Next steps

Only the steps that apply to your route appear here.

WHERE TO FILE

Clerk of the justice court or municipal court of conviction

FILING METHOD

Not established for this route - ask the clerk or filing office.

DEADLINE

Not established for this route - ask the clerk or filing office.

NEXT EVENT

The court decides whether to grant relief.

- 1 GET AN ADVOCATE OR A LAWYER FOR THE HEARING. The committed legal record puts this route in the stop-and-get-help class whenever it is in play, and the reason is specific: the three-element showing is DISCRETIONARY ADVOCACY made in open court, not a form to fill. You will stand up and persuade a judge.
- 2 WHICH SECTION, AND WHERE THIS IS FILED. Both sections say the same thing and which applies depends only on which court convicted you.
- 3 Convicted in JUSTICE COURT Miss. Code Ann. Sec. 9-11-15(3), filed with the clerk of that justice court.
- 4 Convicted in MUNICIPAL COURT .. Miss. Code Ann. Sec. 21-23-7(6), filed with the clerk of that municipal court.
- 5 File with the CLERK OF THE COURT IN WHICH THE CONVICTIONS WERE HAD. Justice and municipal courts are the least standardized courts in Mississippi, so CALL THAT CLERK BEFORE FILING and ask how that court wants this done.
- 6 ONE PETITION PER COURT. Each court expunges only its own misdemeanors. Convictions in two courts need two petitions.
- 7 (Petitioner signs and dates this petition. Nothing on this page is signed or dated for Petitioner.)
- 8 (Service dates are written when service is actually made. No prosecutor's name or address is printed here: the platform holds none for any Mississippi justice or municipal court and does not guess one.)
- 9 WHO YOU SERVE. The PROSECUTING AUTHORITY for that court receives PRIOR NOTICE - the municipal prosecuting attorney on the Sec. 21-23-7(6) branch, and the equivalent prosecutor for the justice court on the Sec. 9-11-15(3) branch. Serve by United States mail or hand delivery and file the certificate of service as your evidence.
- 10 THERE WILL BE A HEARING. This is not a contingency. Both sections require the showing to be made IN OPEN COURT, so a hearing always occurs on this route. Be ready to show three things:
- 11 (i) that you have been rehabilitated;
- 12 (ii) that you have been of good behaviour and have not been convicted of any offence IN ANY COURT for two years since your last conviction; and
- 13 (iii) that the best interest of society would be served by the expungement.

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- 14** THE TWO-YEAR CLOCK COUNTS EVERY COURT. It runs from your last conviction in ANY court, not merely in the court you are petitioning. That is why the Mississippi criminal history record is not optional here: a conviction you forgot, in another court, restarts it.
- 15** WHAT THIS ORDER DOES NOT REACH.
- 16** It does not apply to the confidential records of law-enforcement agencies.
- 17** IT HAS NO EFFECT ON YOUR DRIVING RECORD. The driving record maintained under Title 63 of the Mississippi Code is untouched by this order. If clearing your driving record is what you are after, this route will not do it, and you should say so to whoever is helping you before you spend the effort.

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Filing checklist

Use this page as your final quality-control check.

DOCUMENT CHECK

COURT-FACING DOCUMENT	SIGNED?	COPIES	ATTACH / FILE?
Petition for Expungement of Criminal Record	☐	-	File this with the clerk of the justice court or municipal court of conviction. Call that office before filing and ask how it wants this done.
Proposed Order	☐	-	File this with the clerk of the justice court or municipal court of conviction. Call that office before filing and ask how it wants this done.
Certificate of Service	☐	-	File this with the clerk of the justice court or municipal court of conviction. Call that office before filing and ask how it wants this done.

- Get these before you write anything on the petition.
- 1. YOUR MISSISSIPPI CRIMINAL HISTORY RECORD - from the Mississippi Criminal Information Center. THIS ONE IS NOT OPTIONAL ON THIS ROUTE. The two-year good-conduct clock runs from your last conviction in ANY COURT, not just this one, so the only reliable way to know whether two years have actually passed is to look at your whole record. Do not rely on memory.
- 2. CERTIFIED COPIES OF EACH JUDGMENT OF CONVICTION IN THAT COURT - from the clerk of the justice court or municipal court. Ask for a certified copy of each conviction you want expunged. You list them all on the petition.
- 3. DOCKET SHEET FOR THE CASE - from the clerk of the court where the case was heard. It shows every court-imposed term and whether each was satisfied.
- ONE COURT AT A TIME. Each court expunges only its own misdemeanors. If your convictions are spread across two justice or municipal courts, you need a separate petition in each, with its own certified judgments and its own prosecuting authority served.

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Fees & costs

Separate the cost of your Expungement.ai packet from court, agency, service, certification, and other third-party costs that may apply to your filing.

ESTIMATED OUT-OF-POCKET FILING COST

Not established for this route - ask the clerk or filing office.

Last verified / Official source

Not established for this route - ask the clerk or filing office. | Clerk of the justice court or municipal court of conviction

FEE BREAKDOWN

Not established for this route - ask the clerk or filing office.

FEE WAIVER / INDIGENCY

AVAILABILITY

Not established for this route. Ask the same office.

FORM / PROCESS

Not established for this route - ask the clerk or filing office.

WHERE TO SUBMIT

Not established for this route - ask the clerk or filing office.

WHAT IT COSTS, AND WHAT IS ACTUALLY KNOWN.

The \$150 filing fee you may have read about is levied by Miss. Code Ann. Sec. 99-19-72 on petitions to expunge an offense under Sec. 99-19-71. THIS PETITION IS NOT BROUGHT UNDER SEC. 99-19-71. It is brought under Sec. 9-11-15(3) or Sec. 21-23-7(6), and the Sec. 99-19-72 fee does not reach those sections by its terms. Neither Sec. 9-11-15(3) nor Sec. 21-23-7(6) specifies a fee of its own.

So the honest answer is: no fee amount is established for this route in the records this packet is built from, and the \$150 figure is not yours to pay unless that court itself charges it for some other reason. ASK THE CLERK OF THE JUSTICE COURT OR MUNICIPAL COURT WHERE YOU ARE FILING what that court charges, before you file.

ABOUT A FEE WAIVER. No waiver procedure is established for these sections either. Ask THE SAME CLERK.

WHEN TO STOP AND GET HELP

- This route requires the three-element open-court showing.
The approved record classifies the discretionary advocacy as an attorney or advocate handoff.
- The participant has convictions in more than one justice or municipal court.
Each court needs its own petition and reaches only its own convictions.
- There is any conviction in any court within the last two years.
The statutory good-conduct interval has not elapsed.

IN THE _____ COURT OF
_____, MISSISSIPPI

(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the convictions were had)

STATE OF MISSISSIPPI VS. JORDAN AVERY REYES, PETITIONER

CAUSE NO. _____

PETITION FOR EXPUNGEMENT OF MISDEMEANOR CONVICTIONS

(a) This petition is brought under Miss. Code Ann. Sec.

COMES NOW the Petitioner, Jordan Avery Reyes, and petitions this Court, in its discretion, to expunge the record of conviction of the misdemeanors identified below, all of which were had IN THIS COURT, and would show:

1. IDENTIFYING INFORMATION.

- (a) Petitioner's name: Jordan Avery Reyes
- (b) Date of birth: 1990-04-17
- (c) Mailing address: 42 Magnolia Street, Hattiesburg, MS 39401
- (d) Telephone: 601-555-0142
- (e) Email: jordan.reyes@example.org

2. THE CONVICTIONS IN THIS COURT. This route reaches ANY OR ALL misdemeanors in this one court, and only in this one court. List each conviction you ask this Court to expunge - the charge, the cause number and the conviction date - copied from the certified judgments:

- (a) Each conviction, copied from the certified judgments:
- _____

(If you have convictions in another justice or municipal court, they are NOT reached by this petition. Each court expunges only its own misdemeanors, and a separate petition goes to that other court.)

3. THE THREE-ELEMENT SHOWING. Both sections permit the Court, in its discretion, to expunge on a showing made IN OPEN COURT of the following three things. Petitioner will make that showing in open court; it is not made on this page:

(i) that Petitioner has been rehabilitated; (ii) that Petitioner has been of good behaviour and has not been convicted of any offence in ANY COURT for two (2) years since the last conviction; and (iii) that the best interest of society would be served by the expungement.

4. THE TWO-YEAR CLOCK RUNS FROM THE LAST CONVICTION IN ANY COURT - not merely in this court. Petitioner has obtained a Mississippi criminal history record to confirm it rather than relying on memory.

(a) Date of the last conviction in ANY court, per the Mississippi criminal history record:

5. NOTICE TO THE PROSECUTING AUTHORITY. The prosecuting authority for this court receives prior notice of this petition, and the certificate of service evidences it.

WHEREFORE, Petitioner asks the Court, in its discretion, to expunge the record of conviction of the misdemeanors identified above.

SIGNATURE OF PETITIONER

Jordan Avery Reyes, Petitioner

DATE

JORDAN AVERY REYES

42 Magnolia Street, Hattiesburg, MS 39401

Telephone: 601-555-0142

Email: jordan.reyes@example.org

DECLARATION. Petitioner states that the matters set out above are true and correct to the best of Petitioner's knowledge, information and belief.

IN THE _____ COURT OF
_____, MISSISSIPPI

(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the convictions were had)

STATE OF MISSISSIPPI VS. JORDAN AVERY REYES, PETITIONER

CAUSE NO. _____

ORDER OF EXPUNGEMENT

THIS DOCUMENT IS A PROPOSED ORDER. It is unexecuted. It records no finding this Court has made and nothing in it asserts that the Court has acted.

THIS CAUSE came before the Court on the Petition of Jordan Avery Reyes for expungement of misdemeanor convictions had in this Court, under Miss. Code Ann. Sec. _____, and upon the showing made in open court.

(a) The Court FINDS (findings to be made by the Court, on the showing made in open court):

IT IS THEREFORE ORDERED AND ADJUDGED that the record of conviction of the misdemeanors identified in the Petition, all of which were had in this Court, be and the same is hereby EXPUNGED.

IT IS FURTHER ORDERED that this Order does NOT apply to the confidential records of law-enforcement agencies, and has NO EFFECT on the driving record maintained under Title 63 of the Mississippi Code.

(a) SO ORDERED AND ADJUDGED this day of , 20:

(b) JUDGE:

(c) APPROVED AS TO FORM: Prosecuting authority:

(The findings, the date of entry, the judge's signature and the prosecuting authority's approval as to form are all left blank.)

IN THE _____ COURT OF
_____, MISSISSIPPI

(the JUSTICE COURT of the county, or the MUNICIPAL COURT of the municipality, in which the convictions were had)

STATE OF MISSISSIPPI VS. JORDAN AVERY REYES, PETITIONER

CAUSE NO. _____

CERTIFICATE OF SERVICE

This certificate is captioned for THIS petition. The prosecuting authority receives PRIOR notice of the petition, and this certificate is the evidence of it.

I, Jordan Avery Reyes, certify that I have this day served a true and correct copy of the Petition for Expungement of Misdemeanor Convictions on the prosecuting authority for this Court, by United States mail, postage prepaid, or by hand delivery, addressed as follows:

(a) Prosecuting authority - the MUNICIPAL PROSECUTING ATTORNEY on the Sec. 21-23-7(6) branch, or the equivalent prosecutor for the justice court on the Sec. 9-11-15(3) branch. Name and office:

(b) Address served:

(c) Manner of service (United States mail or hand delivery):

(d) Date served:

Jordan Avery Reyes, Petitioner

Date

JORDAN AVERY REYES

42 Magnolia Street, Hattiesburg, MS 39401

Telephone: 601-555-0142

Email: jordan.reyes@example.org

ABOUT THIS PACKET

Discretionary Expungement of Additional Justice Court or Municipal Court Misdemeanors

ROUTE

MS:additional-justice-court-misdemeanor-relief-9-11-15-3

PACKET SPECIFICATION

ms-additional-misdemeanor-relief v1.0.0

PREPARED FROM VERIFICATION

current-commercial-artifact-review

This packet was prepared from the answers you confirmed at final verification. If any of those answers change, the packet has to be prepared again - a filing built on a superseded answer is worse than no filing.